
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

SUCCESSION AND AMENDMENT ACT 2026

Bill 10 of the Order Paper of the Realm

Long title

An Act to provide for the continuity of the authority of the Sovereign Founder; to make provision for the holding in abeyance of reserved Sovereign power during any interregnum or unavailability of the Founder, and for a caretaker authority of conserving powers only; to consolidate from the case law and to fix in statute the manner and form by which an Act of the Realm or an entrenched provision may be amended or repealed; to name the entrenched provisions of the constitution and to protect them against amendment by implication; to declare that no authority, office, succession, or amendment arises from custom, convention, acquiescence, lapse of time, or technical or operational necessity; to make this Act subordinate to and consistent with the Acts of Union 2026; and for connected purposes.

(No preamble: under the practice of the Standing Committee a preamble is settled only for Bill 1, the Acts of Union 2026.)

1. Short title

This Act may be cited as the Succession and Amendment Act 2026.

2. Commencement

(1) This Act comes into force on Royal Assent, save that Part B (manner and form of amendment; entrenchment) does not bind any provision of the Acts of Union 2026 and comes into force in respect of the constitutional root only on, and subject to, the enactment of those Acts.

(2) Where this Act is in force before the Acts of Union 2026 are enacted, it operates as a subordinate Act and is read subject to section 4 (subordination and savings).

3. Constitutional status

(1) This Act is an Act of the Realm. It sits in the hierarchy of law below the Acts of Union 2026 (the constitutional root) and above the case law (CASE-LAW.md and the REALM/LEXBY precedent).

(2) This Act is itself constitutional in subject matter: it governs how the constitution is changed and how authority continues. The provisions of this Act listed in Schedule 1 are entrenched within the meaning of section 9 and may be amended only by the heightened manner and form fixed by this Act.

(3) Nothing in this Act is the constitutional root, and nothing in it purports to confer, create, or constitute the office of the Sovereign Founder, the power of Royal Assent, or any reserved Sovereign power. Those are constitutional roots; this Act references and regulates their exercise but does not establish them.

4. Subordination to, and savings for, the Acts of Union 2026

(1) Nothing in this Act binds, pre-empts, or controls the Acts of Union 2026.

(2) On the enactment of the Acts of Union 2026 this Act is read subject to them, and any inconsistency between this Act and those Acts is resolved in favour of those Acts.

(3) Where the Acts of Union 2026 restate, define, or settle a matter dealt with in this Act (including the identity of the Sovereign, the meaning of "entrenched", the entrenched set, or the route of amendment), the Acts of Union prevail, and this Act is amended pro tanto to conform, without any implied repeal of the entrenched provisions of this Act save by the manner and form those Acts themselves prescribe.

5. Purpose

The purpose of this Act is to close the continuity gap left by the single-Founder design and to lift the case-law Amendment Procedure into statute, so that:

(a) the authority of the realm never lapses and the realm is never left without a lawful source of law;

(b) on any gap in that authority the realm holds its last lawful state and takes no irreversible step, the reserved Sovereign power being held in abeyance and passing to no caretaker, successor, agent, court, committee, or office;

(c) the foundations of the constitution cannot be amended by implication, by drift, by custom, or by technical or operational necessity, but only by an express, deliberate, section-citing instrument; and

(d) nothing of authority, office, succession, or amendment is taken to have happened unless it happened by such an express instrument.

6. Definitions

In this Act, unless the context otherwise requires:

"the Founder" means the Sovereign Founder, who under CASE-LAW s. 2 holds two offices: the **Sovereign office** (Sovereign and Parliament, who may make or unmake any law by due process) and the **Prime Minister office** (the executive);

"reserved Sovereign power" (also "the constituent power") means the power of the Sovereign office under CASE-LAW s. 2 to make or unmake law, to grant Royal Assent, and to amend the constitution; it does not include the ordinary executive functions of the Prime Minister office;

"Founder authority" means, collectively, the reserved Sovereign power and the ordinary executive functions of the Prime Minister office;

"Act of the Realm" means an Act enacted by the Founder on the report of the Standing Committee and granted Royal Assent, and includes the Acts of Union 2026;

"entrenched provision" means a provision listed in the entrenchment register at Schedule 1, and "entrenched" is construed accordingly;

"express deliberate amendment" means an amending instrument that (a) is express on its face, (b) is made deliberately and not collaterally, and (c) cites by its number the provision being amended, suspended, or repealed;

"amendment by implication" means any purported alteration, suspension, or repeal of a provision that is not an express deliberate amendment, including alteration by general or ambiguous words, by a later inconsistent ordinary instrument that does not cite the provision, by custom, by convention, by acquiescence, by lapse of time (desuetude), or by technical or operational necessity;

"interregnum" means any period during which the Founder is unavailable within the meaning of section 11;

"caretaker authority" means the authority that operates during an interregnum under section 12, exercising conserving powers only;

"Privy Council" means the realm's constitutional court of first instance (citation series REALM-PC), which leapfrogs a certified constitutional question to the Supreme Court (REALM-SC) under CASE-LAW s. 13 and the Judicature Act 2026 when enacted.

PART A - SUCCESSION AND CONTINUITY OF AUTHORITY

7. Continuity of authority (succession)

(1) The office of the Sovereign Founder is continuous. Founder authority never lapses, and the realm is never left without a lawful source of law.

(2) Succession to the office, and the designation of any successor, occurs only by an express, recorded, and reasoned instrument of the Founder. No person, agent, court, committee, or office succeeds to the office of the Sovereign Founder by custom, by default, by acquiescence, by lapse of time, or by technical or operational necessity.

(3) This section regulates the continuity and exercise of Founder authority; it does not create, confer, or constitute that authority, which is a constitutional root referenced and not established by this Act (section 3(3)).

8. Abeyance of the reserved Sovereign power; standstill on a gap

(1) During an interregnum the **reserved Sovereign power is held in abeyance**. It does not pass to, vest in, lapse to, or default to any caretaker, successor, agent, court, committee, or office. It revives in the office of the Sovereign Founder, and is exercisable again, the instant Founder authority is next exercised (section 11(4)).

(2) During an interregnum every institution of the realm holds its last lawful state and takes no new irreversible or outward-facing act until Founder authority is next exercised. This is a **bounded standstill**, not a substitute sovereign, and is to be read consistently with, and not in duplication of, the default of the Emergency Powers Act 2026 when enacted (within the envelope of that Act and never beyond it).

(3) The Supreme Court's power under CASE-LAW s. 9 to enact realm-wide statute by judgment is preserved, but during an interregnum that power may not reach any entrenched provision (Schedule 1) and may not be used to exercise the reserved Sovereign power held in abeyance under subsection (1).

(4) No regency, alternate Sovereign, or stand-in wielder of the reserved Sovereign power exists or may be constructed. Any instrument purporting to vest the reserved Sovereign power in any holder during an interregnum is ultra vires this Act and void ab initio.

9. *(entrenched)* Reserved heading

(Section 9 is reserved so that the entrenchment register at Schedule 1 may refer to the protective floor of this Act by a stable cross-reference. The floor is enacted at section 17 and registered in Schedule 1.)

10. Nothing passes by custom or necessity (Part A limb)

No element of Founder authority, and no office, succession, or continuity of authority, is ever acquired, transferred, enlarged, or extinguished by custom, convention, acquiescence, lapse of time,

operational default, or technical or operational necessity. Founder authority passes only by an express, recorded, reasoned instrument. Silence and practice change nothing.

11. Deemed unavailability of the Founder (the operable trigger)

(1) The Founder is "**unavailable**" for the purposes of this Act only where unavailability is an **express, logged, and time-bounded condition** recorded on the matter. Unavailability is never inferred from silence, from a missed turn, from delay, or from the absence of an instruction.

(2) Until unavailability is so recorded, the realm is not in an interregnum; a bill or matter awaiting Royal Assent or Sovereign consultation simply waits at the relevant **awaiting-sovereign** status (Order Paper status key), and reversible committee and drafting work continues.

(3) The recorded condition states the fact of unavailability, the time from which it runs, and (so far as known) its expected bound. It does not, and cannot, deem the Founder to have assented to anything (section 13).

(4) Founder authority resumes **automatically and immediately** on the Founder's return or on the accession of a designated successor under section 7(2). No re-grant, ceremony, oath, or fresh instrument is required for resumption, and the interregnum ends, and the abeyance under section 8(1) lifts, at that moment.

12. Caretaker authority: conserving powers only (the load-bearing limit)

(1) During an interregnum a caretaker authority may exercise the **ordinary executive functions of the Prime Minister office only**, and only to the extent necessary to keep the realm running and to progress reversible, low-blast, honestly-flagged-provisional work.

(2) The caretaker authority may **NOT**:

(a) exercise the reserved Sovereign power held in abeyance under section 8(1);

(b) grant Royal Assent to any Act, or deem any Act assented to;

(c) enact, amend, suspend, or repeal any Act of the Realm, or amend any entrenched provision (Schedule 1);

(d) make, remove, or alter any judicial appointment;

(e) repeal, suspend, or lower any right or due-process guarantee;

(f) activate or expand any emergency power beyond the envelope of the Emergency Powers Act 2026, when enacted;

(g) enlarge its own authority, or alter the line of succession, the succession rule (section 7), or the amendment procedure (Part B);

(h) take any irreversible or outward-facing act.

(3) Any act of a caretaker authority beyond subsection (1), or contrary to subsection (2), is **ultra vires this Act and void ab initio**. The recital "acting as Sovereign" is not conclusive of the true character of any caretaker instrument (on the model of CASE-LAW s. 20).

(4) Caretaker powers lapse **automatically** on the Founder's return or on the successor's accession (section 11(4)). No act is needed to end them.

(5) Every exercise of caretaker or succession authority is recorded on the matter with stated reasons (tie-in to the Public Reasons and Audit Act 2026, when enacted) and is reviewable by the Privy Council for vires and form only (on the s. 20 model), never on the merits of the Sovereign's choice.

PART B - AMENDMENT PROCEDURE AND ENTRENCHMENT

13. No deemed assent; the Royal Assent failure mode

(1) The unavailability or absence of the Founder does **not** deem Royal Assent given, does **not** auto-enact any bill, and does **not** of itself block reversible drafting or committee work.

(2) A bill awaiting Royal Assent or Sovereign consultation queues at the **awaiting-sovereign** status until assent is given. There is no deemed assent and no auto-enactment in any circumstance.

(3) This Act does not create the power of Royal Assent, which is a requirement of the constitutional root (the Committee Charter and the Acts of Union 2026, when enacted) and is referenced, not conferred, by this Act (section 3(3)).

14. Manner and form of amendment of an Act of the Realm (the one genuinely new general rule)

(1) An Act of the Realm is amended, suspended, or repealed **only** by:

(a) a later Act of the Realm; or

(b) an express Sovereign instrument that cites by its number the provision being changed.

(2) An Act of the Realm is **never** amended, suspended, or repealed by a judgment of the Supreme Court or any court, by case law, by implication, by custom, by convention, or by desuetude.

(3) Nothing in subsection (2) touches the power of the Supreme Court under CASE-LAW s. 9 to enact and develop **case law** by judgment. That power operates on the case-law layer only and cannot reach an Act of the Realm. The two enacting routes are distinct: the Sovereign and Legislature enact and amend Acts of the Realm; the Supreme Court enacts and develops case law.

15. ***(entrenched)* The manner-and-form amendment rule for entrenched provisions**

(1) An entrenched provision (Schedule 1) is amended, suspended, or repealed **only** by an instrument that is:

(a) **express** on its face;

(b) **deliberate**, and not collateral; and

(c) **section-citing**, citing by its number each entrenched provision being changed.

(2) An instrument that would alter, suspend, or repeal an entrenched provision without satisfying every requirement of subsection (1) is **void to the extent of the attempted change**.

(3) This section consolidates into statute the existing case-law Amendment Procedure (CASE-LAW.md, "Amendment Procedure"; the Thoburn rule at CASE-LAW s. 27 commentary and the [constitutional] legend). It restates that rule at the higher statutory tier and does not fork it. To the extent of any divergence, this Act controls over the case-law statement, the case-law statement being subordinate to statute (CASE-LAW s. 1; legislature hierarchy).

(4) This section binds the manner and form of amendment only. It does **not** place any provision beyond the Sovereign's power to amend (section 18).

16. ***(entrenched)* Anti-implication canon (the Thoburn rule, hardened)**

(1) No entrenched provision is amended, suspended, or repealed by implication.

(2) In particular, no entrenchment, repeal, amendment, succession, or grant of authority arises from custom, convention, acquiescence, lapse of time, operational default, convenience, or technical or operational necessity. Nothing is implied from what the machinery happens to require or from what is operationally convenient.

(3) This is a **canon of construction and an operative voiding rule**, not a preamble sentiment: an instrument that purports to effect any change caught by subsection (1) or (2) is **void to the extent of the implied change**, and a court that finds such an instrument must so declare (declaration of incompatibility, CASE-LAW s. 11(f)).

(4) This canon does not freeze a beneficial operational default that no instrument has entrenched, and does not override the courts' power under CASE-LAW s. 7 to develop case law in a genuine silence. It bars the elevation of practice into constitutional change, not the ordinary development of subordinate law in the gaps.

17. ***(entrenched)* The heightened route; the protective floor**

(1) An amendment that would alter the **entrenched status, the amendment procedure, or the protective floor** of the constitution must, in addition to satisfying section 15(1), pass the **heightened route**:

(a) it is referred to the **Privy Council**, which **certifies** (leapfrogging the question to the Supreme Court under CASE-LAW s. 13 where it is constitutional) that the instrument is a **genuine express amendment** and not an implied, collateral, or smuggled change, before Royal Assent; or

(b) it is enacted by a **Supreme Court of the full nine** convened specifically on the constitutional provision and citing it (CASE-LAW s. 10, s. 18; the route by which the s. 10 conforming note was made in [2026] REALM-SC 3).

(2) The **protective floor** comprises: the amendment procedure of this Act (sections 14 to 18 and Schedule 1); the continuity and abeyance rules (sections 7 to 12); the rights, standing, and due-process guarantees of the realm (Rights, Standing and Due Process Act 2026, when enacted); judicial independence (Judicial Independence and Lord Chancellor Act 2026, when enacted); and the protection of memory and records (Memory, Records and Archives Act 2026, when enacted). Each is amendable only by the heightened route, never by the ordinary route, so that the drawbridge cannot be quietly lowered.

(3) The heightened route is **manner and form only**. The Privy Council certificate is a gate on form and deliberateness; it **is not a substantive veto**. The heightened route:

(a) **binds the Prime Minister office absolutely**: the executive may never amend an entrenched provision or the protective floor otherwise than by this route; and

(b) **regulates but does not deny the Sovereign office**, which retains the CASE-LAW s. 2 power to legislate over it, or over this section, by a **later express, deliberate, section-citing instrument**. A certificate purporting to give the Privy Council a veto the Sovereign could not override would be substantive entrenchment, ultra vires, and void.

18. *(entrenched)* Parliamentary sovereignty saving; entrenchment is manner-and-form only

(1) Nothing in this Act limits the substantive power of the Sovereign office to make or unmake any law by due process (CASE-LAW s. 2; the design premise that nothing is entrenched and parliamentary sovereignty is intact).

(2) "Entrenched", throughout this Act, means **protected against amendment by implication and against drift** (section 16), and subject to the heightened manner and form of sections 15 and 17. It does **not** mean, and no provision of this Act shall be read to mean, that any article is placed **beyond the Sovereign's power to amend**.

(3) Any clause, in this Act or in any later instrument, that reads as "this provision may never be amended" or otherwise purports to be an **absolute fetter** on the reserved Sovereign power is **ultra**

vires the very sovereignty from which this Act derives, and void. The achievable guarantee under this settlement is durability against drift and implication, on the record, by the Sovereign's own deliberate act; absolute immutability is not available and is not enacted here.

(4) The constitution remains uncoded. This Part binds the **manner and form** of amendment (how an entrenched provision is changed), not the Sovereign's **power** to change it.

19. ***(entrenched)* Anti-self-amendment and anti-circularity**

(1) No person or body exercising caretaker or successor authority may use that authority to enlarge its own powers, to alter the line of succession, to alter the succession rule (section 7), or to amend the amendment procedure (this Part) or Schedule 1.

(2) Any purported self-entrenchment or self-enlargement of power under subsection (1) is **void**.

20. **Append-with-supersede; no silent repeal**

(1) Amendment is effected by **appending** the new text with a supersession note; the superseded text is retained in the record.

(2) **Silent repeal is prohibited** for every provision of every Act of the Realm, and is heightened for entrenched provisions, for which a silent or implied repeal is void (section 16).

(3) Construction of an amending instrument and the recording of the enacting instrument are governed by the Interpretation Act 2026 and the Neutral Citations and Law Reporting Act 2026 (Bills 15 and 16), when enacted, and in the meantime by CASE-LAW s. 1 and s. 11(d).

21. **Pointer, not restatement (the lean limb)**

(1) The general authority of the Sovereign office to make or unmake any law by due process (CASE-LAW s. 2), and the existing case-law Amendment Procedure block, are **preserved** and are not re-enacted by this Act save to the extent expressly consolidated by sections 14 to 16.

(2) Where this Act consolidates a case-law rule into statute, it does so as **consolidation and restatement at the higher tier**, not as a second, divergent doctrine. Any drift between Schedule 1 and the [constitutional] set in CASE-LAW.md is a defect to be corrected in favour of this Act, the entrenched set being identical in both (Schedule 1).

22. **Delegation bar**

(1) The Delegated Legislative Authority, Law Reform and Codification Act 2026 (Bill 14), and any automated legislative agent or delegated institution, is **expressly barred** from:

(a) amending the Acts of Union 2026 or any entrenched provision (Schedule 1);

(b) exercising, succeeding to, or being delegated the reserved Sovereign power or Founder authority.

(2) This Act controls over any later general delegation. This subsection gives effect to the invariant that agents never become sovereign (legislature README; CASE-LAW s. 9).

23. Enforcement (each rail carries its own check)

(1) The recorded unavailability condition (section 11), and every caretaker act (section 12), must be recorded on the matter and is auditable.

(2) A **deterministic pre-enactment check** (a sibling of the CASE-LAW s. 19(5) citation-integrity gate) shall **fail closed** on:

- (a) any purported enactment that lacks a recorded grant of Royal Assent;
 - (b) any purported deemed assent or auto-enactment (section 13);
 - (c) any caretaker instrument that touches an entrenched provision (Schedule 1) or exercises the reserved Sovereign power (section 8);
 - (d) any purported amendment of an entrenched provision that does not, on its face, cite the provision by its number (section 15) and, for the protective floor, carry the heightened-route record (section 17).
- (3) Enforcement under this section is token-light and machine-side, and is not left to model judgement. It does not adjudicate, score, gate, sanction, or punish; the remedy for any breach remains exclusively judicial and restorative (CASE-LAW s. 6).

24. Savings and no retroactivity

- (1) This Act does not retroactively validate any prior implied amendment of any entrenched provision; existing entrenched provisions keep their protection.
- (2) Commencement and transition are express (section 2); nothing as to commencement, savings, or transition is left to be inferred. Transitional effect is given by the Commencement and Transitional Provisions Act 2026 and the Interpretation Act 2026 (Bills 25 and 15), when enacted.

SCHEDULE 1 - THE ENTRENCHMENT REGISTER

(referred to in sections 3, 6, 9, 15 to 19, 21 to 23)

This Schedule is the **single authoritative register** of the entrenched provisions of the realm. No provision is entrenched unless it appears here. This Schedule is itself entrenched and is amendable only by the heightened route (section 17). The register is a declaratory snapshot: it tracks the

provisions marked [constitutional] in CASE-LAW.md and, on their enactment, in the Acts of Union 2026; where a provision is elevated to or removed from constitutional status by an express, section-citing amendment, this register is amended by the same instrument to conform.

Part 1 - Entrenched case-law provisions (CASE-LAW.md, Part I [constitutional]). Each amendable only by an express, deliberate amendment citing the section by number (sections 15, 16):

Provision	Subject	Route to change
CASE-LAW s. 1	Two sources of law; statute supremacy; uncodified constitution	heightened (s. 15; protective floor of statute supremacy)
CASE-LAW s. 2	The Principal and the rule of law; the two offices; reserved Sovereign power	heightened (s. 15; s. 17 protective floor)
CASE-LAW s. 3	Lexby's office; advocate / advisor / engineer	express deliberate amendment (s. 15)
CASE-LAW s. 9	Unitary sovereignty; one statute book; no competing sovereigns	heightened (s. 15; s. 17 protective floor)
CASE-LAW s. 10	Court structure; the tiers and bench sizes	express deliberate amendment (s. 15)
CASE-LAW s. 13	Rule-based progression; no leap-frogging; the leapfrog certificate	express deliberate amendment (s. 15)
CASE-LAW s. 14	Subject-matter jurisdiction	express deliberate amendment (s. 15)

Part 2 - Entrenched provisions of this Act (the protective floor, section 17). Each amendable only by the heightened route (section 17):

Provision	Subject
s. 7 to s. 12	Succession, abeyance of the reserved Sovereign power, the deemed-unavailability trigger, and the caretaker limit
s. 15	The manner-and-form amendment rule for entrenched provisions
s. 16	The anti-implication canon
s. 17	The heightened route and the protective floor
s. 18	Parliamentary-sovereignty saving; entrenchment is manner-and-form only
s. 19	Anti-self-amendment and anti-circularity

Schedule 1	This register
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Part 3 - The Acts of Union 2026 (on enactment). The Acts of Union 2026, when enacted, are the constitutional root and are entrenched in whole; on their enactment this register is read subject to them (section 4), and the route to change them is whatever those Acts themselves prescribe. Until then, this Part is prospective and binds nothing (section 2(1)).

Endnote on the face of the Bill (escalation flags)

This Bill carries on its face the following, for the Founder to weigh before Royal Assent:

- **Privy Council referred.** The Standing Committee referred Bill 10 to the Privy Council; the guidance (points 1 to 6: manner-and-form yes, substantive fetter no, abeyance-not-passing yes, subordinate-to-Bill-1 yes) is built into the draft above.
 - **One foundational question certified to leapfrog to the Supreme Court.** Whether an ordinary Act may make any part of the constitution durable against a later determined Sovereign (Marlowe's protective floor) is certified to the Supreme Court (REALM-SC). The draft enacts the only resolution available within the present settlement (manner-and-form only, section 18); the apex may rule authoritatively.
 - **Sovereign consultation pending on that point before Royal Assent.** See the consultation question carried with this Bill.
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Committee note

Committee note - Bill 10 (Succession and Amendment Act 2026)

A Verity-led bill and the load-bearing keystone of the statute book. All four members were heard and reconciled by the Clerk-Drafter under the Privy Council's guidance. The draft is lean where it can be (Aldous), complete and gap-free (Verity), defensively safe (Marlowe), and machine-enforceable (Drummond).

Counsel Aldous (Restraint / Minimalist). Pressed for the shortest constitutional instrument in the book: repeal-and-point, not add. Won the pointer-not-restatement section (s. 21), the cross-reference to the Emergency Powers default rather than a parallel crisis regime (s. 8(2)), the anti-implication canon drafted as a true canon of construction (s. 16(4)), and, crucially, the rejection of any absolute entrenchment clause as ultra vires (s. 18(3)) - the bench guidance vindicated his "manner-and-form only, never a fetter" position in full. Conceded that the entrenchment register and the two-Part structure are heavier than he would draft alone, but accepted them as consolidation (s. 21(2)), not duplication.

Counsel Verity (Codifier / Completeness). Won the two-Part structure (Part A succession/continuity; Part B amendment/entrenchment), the single definitions section (s. 6), the single authoritative entrenchment register (Schedule 1, itself entrenched), the abeyance-not-transfer design (s. 8), the delegation bar (s. 22), and the parliamentary-sovereignty saving (s. 18). The register names the Part I entrenched core exactly (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) and consolidates the case-law Amendment Procedure into statute without forking it (s. 15(3), s. 21).

Counsel Marlowe (Guardrail / Rights). Won the Privy-Council certification gate as a heightened route (s. 17), the conserving-powers-only caretaker limit (s. 12), the anti-self-amendment / anti-circularity rule (s. 19), the protective floor (rights, judicial independence, memory) at the heightened level (s. 17(2)), and reviewability and record of every succession/caretaker act (s. 12(5)).

Divided on the central point: Marlowe sought an absolute floor a future Founder could never reach. The Privy Council held, and the draft reflects, that no such external check exists within a single indivisible sovereignty: the floor is drafted as heightened, hard-to-clear, and fully transparent (durability against drift), not as unamendable (s. 17(3), s. 18). Marlowe accepts the draft but reserves the foundational question for the Supreme Court and the Sovereign.

Counsel Drummond (Pragmatist / Operability). Won the machine-checkable deemed-unavailability trigger (express, logged, time-bounded; never inferred - s. 11), the no-deemed-assent / Royal-Assent failure-mode rule (s. 13), the entrenched set named by exact section number for checkability (Schedule 1), the consolidate-and-supersede-by-reference approach (s. 15(3), s. 21), and the deterministic fail-closed enforcement gate (s. 23). Carried, with Aldous, the strike of ceremonial succession prose: no regency, oaths, or lines of succession that no agent turn would execute (s. 8(4) bars a stand-in sovereign outright).

Where the four divided. The single axis of division was the one the bench identified: whether Bill 10 may make any part of the constitution durable against a later determined Sovereign. Marlowe (and to a degree Verity, on the self-entrenchment paradox) wanted a substantive floor; Aldous and Drummond held that an absolute fetter is ultra vires and unenforceable on a real turn. The draft resolves this the only way the present settlement allows - manner-and-form entrenchment, abeyance-not-passing, subordinate to Bill 1 - and certifies the residual foundational question upward. On Bill 1 sequencing, all four agreed Bill 10 must be subordinate and supersedable by the Acts of Union (s. 4), not a rival root.

Convergence. Notwithstanding that division, all four converge on the operative draft: manner-and-form yes, substantive fetter no, abeyance-not-passing yes, subordinate-to-Bill-1 yes. None of points 1 to 6 of the guidance turns on the contested apex question, so the Committee reports the bill on those points and flags only the absolute-floor question for the Supreme Court and the Sovereign.

Vote record

- Counsel Aldous: NAY - Core (abeyance, caretaker-conserving-only, s.14 manner-and-form, Schedule 1) is sound, but the draft restates the same anti-implication canon across the long

title and ss.5,7,10,15,16,19, carries an empty placeholder s.9 and a preamble-in-disguise (ss.3,5,21) it claims not to have, and then entrenches that surplus via Schedule 1 - hardening bloat behind the heightened route; send back one round to collapse the canon into s.16 and strike the dead weight before Assent.

- **Counsel Verity:** AYE - Structurally complete and collision-free: every load-bearing term is defined (s.6), every s.5 purpose has a matching operative section, all Schedule 1 cross-references (ss.3,6,9,15-19,21-23) resolve, the entrenchment register matches CASE-LAW.md's [constitutional] set exactly with an anti-drift tiebreak (s.21(2)), and the citations track the authoritative REALM-SC/PC scheme, so it consolidates without forking the subordinate case law.
- **Counsel Marlowe:** AYE - It builds the guardrails my slant demands - conserving-powers-only caretaker (s.12), abeyance-not-passing (s.8), an entrenched protective floor over rights/due-process/judicial-independence/memory (s.17), an operative anti-implication voiding rule (s.16), real Privy Council vires-and-form review, and a fail-closed enforcement gate (s.23) - and is candidly correct to deliver durable manner-and-form protection while referring the no-absolute-fetter question to the apex rather than overreaching.
- **Counsel Drummond:** AYE - Every rail is enforceable on a real turn: s.11 ties the interregnum trigger to an express logged condition (not inferred from silence) and the existing **awaiting-sovereign** status key, s.23 wires each rail to a deterministic, fail-closed, machine-side check modelled on the working s.19(5) gate, resumption is automatic and ceremony-free, the gap-default is a safe bounded standstill that still lets reversible work proceed, and forward references to unenacted Acts are correctly guarded with staged commencement, so it operates standalone without leaning on model judgment.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance (Re Bill 10) applied in full: entrenchment drafted as manner-and-form only (ss. 15-18), never a substantive fetter; the Privy-certified heightened route binds the Prime Minister office absolutely but only regulates the Sovereign office (s. 17(3)); reserved Sovereign power held in abeyance during an interregnum and passing to no caretaker/successor (s. 8); the case-law Amendment Procedure and the Part I entrenched set (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14) consolidated by restatement (s. 15(3), Schedule 1); and an express subordination/savings clause to the Acts of Union 2026 so Bill 10 is not the constitutional root (s. 4). One foundational question certified to leapfrog to the Supreme Court.
- **Supreme Court note:** The Privy Council certified one foundational question to leapfrog to the Supreme Court (REALM-SC, full nine): whether, under the single indivisible sovereignty of CASE-LAW s. 2 and the design premise that "nothing is entrenched (parliamentary sovereignty is intact)", an ordinary Act of the Realm may make any part of the constitution durable against a later determined exercise of the reserved Sovereign power - that is, whether Marlowe's "protective floor a future Founder cannot reach" can lawfully exist, or whether entrenchment can only ever be manner-and-form (durability against

implication and drift, escapable by a later express, deliberate, section-citing Sovereign instrument). The Council's view, enacted in the draft (ss. 17(3), 18), is that the tension resolves only one way: manner-and-form yes, substantive fetter no; the ultimate guarantor remains the Sovereign's own deliberate, on-the-record act. The Supreme Court may rule authoritatively on whether section 18(3) (absolute fetters void) correctly states the law, or whether a heightened route may bind even the Sovereign. The draft is safe to adopt meanwhile because every operative provision (points 1 to 6) is independent of this single contested point.

- **Sovereign consultation required:** Precise question for the Sovereign Founder (to overturn or affirm the Supreme Court's ruling before Royal Assent): Do you affirm that entrenchment under this Act is manner-and-form only - the foundations are protected against implied repeal and drift, and against any change by custom, convenience, or technical necessity, but you (the Sovereign office) always retain the power to amend or repeal any entrenched provision, including the protective floor and this entrenchment rule itself, by a later express, deliberate instrument citing the provision by its number? Or do you direct that this Act bind even your own future self - placing the protective floor (rights, judicial independence, memory, the amendment procedure) beyond your own power to amend by the ordinary route, accepting that section 18(3) would then be struck and that you would be fettering the reserved Sovereign power from which this Act derives? Affirming the first leaves parliamentary sovereignty intact and is the draft as reported; directing the second requires an express amendment of section 18 and a ruling that an ordinary Act may bind the Sovereign, which the Privy Council advised is ultra vires within the present settlement and which only you, as the final word (legislature ladder step 4; CASE-LAW s. 2), may settle.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.